

TERMS & CONDITIONS OF SALE AND ANNEXURE

1. DEFINITIONS

- 1.1. **"the Company"** means The Crown Group of Companies (Pty) Ltd, including all Subsidiaries and Operating Companies;
- 1.2. **"the Customer"** means any juristic person(s), Trust(s), Partnership or other entity contracting with the Company in the ordinary course of trade;
- 1.3. **"Contract"** means any agreement concluded between the Company and the Customer for the supply of Goods and/or Services, including quotations, purchase orders, invoices, delivery notes, these Terms and Conditions and Annexure A, unless otherwise agreed in writing and signed by a Director of the Company;
- 1.4. **"Goods"** means any goods manufactured, supplied, imported, modified, assembled, refurbished or repaired by the Company;
- 1.5. **"Services"** means any services rendered by the Company;
- 1.6. **"Customer-Owned Goods"** means any goods, materials, equipment or components owned by the Customer and delivered to or collected by the Company;
- 1.7. **"Delivery Date"** means the date specified by the Company for delivery or collection, or in the absence of such specification, the date on which the Goods are ready for delivery or collection;
- 1.8. **"Ex-Works"** means the date on which the Goods are made available by the Company for collection at its premises or to be delivered to Customer;
- 1.9. **"Invoice"** means the document issued by the Company requesting payment for Goods supplied and/or Services rendered;
- 1.10. **"End-User"** means the ultimate recipient or beneficiary of the Goods and/or Services with whom the Customer is contracted;
- 1.11. **"Prime Rate"** means the South African prime lending rate as published from time to time by the Company's principal banker;
- 1.12. **"Care, Custody and Control"** means any duty, responsibility, assumption of risk, safekeeping obligation or liability for loss, theft, damage or destruction of Customer-Owned Goods while such items are in the possession, handling, storage, transporting, testing, repair or modification, of the Company (or its Employees, Agents or Subcontractors).

2. APPLICATION, ENTIRE AGREEMENT & INTERPRETATION

- 2.1. All Goods supplied and Services rendered by the Company are subject to these Terms & Conditions and Annexure A which forms an integral part hereof;
- 2.2. These Terms & Conditions constitute the entire agreement and supersede all prior agreements, negotiations or representations;
- 2.3. No Customer terms shall apply unless expressly accepted in writing and signed by a Director of the Company;
- 2.4. Headings are for convenience only and do not affect interpretation;
- 2.5. No indulgence or relaxation shall constitute a waiver of rights;
- 2.6. Any invalid or unenforceable provision shall be severable without affecting the remainder of the Contract;

3. QUOTATIONS, ORDERS & VARIATIONS

- 3.1. Quotations are invitations to do business only and may be withdrawn or amended prior to acceptance;
- 3.2. A binding Contract arises only upon written acceptance by the Company;
- 3.3. All orders, instructions and variations must be in writing and are binding on the Customer;

4. CANCELLATION

- 4.1. In the event that the Customer wishes to cancel any order, such cancellation will only be accepted if prior written notice was provided to, accepted and signed by a Director of the Company. The Customer shall be liable to pay for any costs incurred by the Company (materials, labour, transport, etc).

5. PRICING & COST VARIATIONS

- 5.1. Prices are quoted in South African Rand (ZAR) and exclude VAT unless otherwise stated;
- 5.2. Prices are subject to increase in cost price prior to dispatch, including exchange rate fluctuations, materials, supplier increases, freight, insurance, storage, testing, commissioning, travel and accommodation.

6. MANUFACTURE TO SPECIFICATION & DESIGN RESPONSIBILITY

- 6.1. The Company manufactures strictly to Customer-supplied or Customer-approved specifications;
- 6.2. Unless agreed in writing, the Company provides no design, engineering, consulting or advisory services;
- 6.3. The Customer assumes full responsibility for design adequacy, compliance, suitability, efficacy and performance;

7. FREE-ISSUE MATERIALS & CUSTOMER-OWNED GOODS

- 7.1. Customer-Owned Goods are delivered at the Customer's sole risk and deemed to be in good order;
- 7.2. The Customer warrants accuracy of all samples and materials and bears all resulting costs;
- 7.3. The Customer accepts liability for any damage or injury caused by Customer-Owned Goods;
- 7.4. The Customer authorises disassembly, handling and testing of Customer-Owned Goods;

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8. CUSTOMER DRAWINGS & DESIGN DISCRETION

- 8.1. Where the Customer supplies any drawing, sketch, plan, diagrams, design or specification ("Customer Drawings"):
 - 8.1.1. The Customer acknowledges that the Customer Drawings are provided for indicative and reference purposes only.
 - 8.1.2. The Customer warrants that it holds all necessary rights, licenses and permissions in respect of the Customer Drawings and that the use of the Customer Drawings by the Company for reference purposes does not infringe the intellectual property rights on any third party.
 - 8.1.3. The Customer hereby grants the Company permission to reproduce, adapt, and prepare its own drawings, machining programs, jigs, patterns and technical documentation derived therefrom for the purposes of manufacture, fabrication, and related processes.
 - 8.1.4. All manufacturing drawings, machining programs, jigs and patterns prepared by the Company shall remain the property of the Company and cannot be used, reproduced or copied, in whole or in part by any means without prior written and signed consent from the Company and its Director/s.
- 8.2. The Customer acknowledges that manufacturing will proceed based on the Company's drawings, unless otherwise agreed in writing and signed by a Director of the Company, and that the finished product shall not constitute a copy or reproduction of the Customer Drawings but rather a product manufactured by the Company.
- 8.3. The Customer hereby indemnifies and holds the Company harmless against any claims, damages, losses, costs or expenses (including legal costs) arising from any alleged infringement of copyright or intellectual property rights relating to the Customer Drawings.

9. DELIVERY, COLLECTION & EXPORTS

- 9.1. Delivery dates are estimates only.
- 9.2. Delivery is Ex-Works unless otherwise agreed.
- 9.3. Export deliveries are governed by the applicable Incoterms.
- 9.4. Signed delivery notes constitute prima facie proof of delivery.

10. RISK, OWNERSHIP, INSURANCE & NO CARE, CUSTODY AND CONTROL

- 10.1. Any Customers goods being held by the Company for repair or refurbishment must be insured by the Customers own insurance. The Company will not be held liable for loss of or damage to said Goods if the Goods were not properly insured by the Customer.
- 10.2. Ownership remains vested in the Company until payment in full.
- 10.3. The Customer is responsible for insuring the Goods at full replacement value.
- 10.4. NO CARE, CUSTODY AND CONTROL
 - 10.4.1. The Company does not assume Care, Custody and Control of any Goods or Customer-Owned Goods at any time.
 - 10.4.2. This applies while Goods are on Company premises, subcontractor premises, in transit, under repair, testing, refurbishment or storage.
 - 10.4.3. All Goods remain at the Customer's sole risk.
 - 10.4.4. The Company shall not be liable for loss or damage howsoever arising, including theft, fire, hijacking, vandalism, corrosion, weather exposure or accidental damage.

11. PAYMENT TERMS

- 11.1. Payment shall be by electronic bank transfer only.
- 11.2. Payment is due on order or, for approved credit customers, within 30 days from date of invoice.
- 11.3. Payment is deemed made only upon cleared funds.
- 11.4. No set-off or withholding is permitted.
- 11.5. Interest accrues at Prime + 2% per month.
- 11.6. A certificate of indebtedness constitutes prima facie proof.
- 11.7. Invoice disputes must be raised within 14 days.

12. THIRD-PARTY COMPONENTS

- 12.1. Motors, seals, gearboxes, instrumentation and other third-party components are supplied subject to the original manufacturer's warranty only, if any.
- 12.2. The Company provides no independent warranty in respect of such components.
- 12.3. Where third party goods and/or services are supplied (not manufactured by the Company). The onus is on the Customer to check the appropriate warranty. No warranty will be given by the Company. All products sold that has not been manufactured by the Company are sold "voetstoots" and without any warranties whatsoever.

13. TESTING, COMMISSIONING & REPAIRS

- 13.1. Testing and commissioning occur at the Customer's risk.
- 13.2. Repair dates are estimates only.
- 13.3. The Customer authorises all disassembly and handling.

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14. **WARRANTIES & SERVICE CENTRE TERMS**

- 14.1. Goods are supplied "VOETSTOOTS", unless expressly warranted in writing and signed by a Director of the Company.
- 14.2. Third-party components carry manufacturer warranties only.
- 14.3. Strip-and-quote fees apply.
- 14.4. Uncollected items after 90 days may be scrapped.
- 14.5. Service work carries a 3-month workmanship warranty unless Annexure A applies.
- 14.6. The Company will review all warranty claims at its discretion. Following said review, the Company will either correct any defects by suitable repair or furnish replacement parts provided that the Customer has stored, installed, maintained and operated the Goods in accordance with the Company's instructions and standard requirements and provided that the claim is within the warranty period.
- 14.7. The Customer acknowledges that any defective parts returned to the Company for review will be at the expense of the Customer.

15. **LIMITATION OF LIABILITY & INDEMNITY**

- 15.1. Liability, when proven, is limited to 50% of the invoice value of the Goods or Service.
- 15.2. No liability for indirect or consequential losses.
- 15.3. Any claim arising from loss of or damage to Goods or Customer-Owned Goods while under Company handling is excluded as a Care, Custody and Control risk.
- 15.4. The Customer indemnifies the Company against all third-party claims.

16. **INTELLECTUAL PROPERTY & CONFIDENTIALITY**

- 16.1. All intellectual property remains the exclusive property of the Company.
- 16.2. No reverse engineering, copying or disclosure is permitted by the Customer.
- 16.3. This clause survives termination.

17. **ASSIGNMENT & SUB-CONTRACTING**

- 17.1. The Company may act as a nominated sub-contractor without assuming project responsibility.

18. **BREACH, SUSPENSION, CANCELLATION & REPOSESSION**

- 18.1. Upon breach or insolvency, the Company may suspend, cancel or repossess Goods.
- 18.2. The Customer authorises lawful entry for repossession.

19. **CESSION OF BOOK DEBTS & SURETYSHIP**

- 19.1. All book debts are ceded as continuing security.
- 19.2. The signatory binds themselves as surety and co-principal debtor, renouncing excussion and division.

20. **DOMICILIUM & NOTICES**

- 20.1. Company: **64 Hanau Street, Wolhuter, Johannesburg**
- 20.2. Customer: **Registered address on record**
- 20.3. Notices shall be by email.

21. **FORCE MAJEURE, POWER & WATER OUTAGES, RIOTS, PANDEMICS & DELAYS**

- 21.1. The Company shall not be liable for any failure, delay or interruption caused by events beyond its control.
- 21.2. This includes riots, unrest, strikes, power outages, load shedding, water outages, pandemics, viruses, government restrictions, natural disasters, supplier failures and transport disruptions, or the like thereof.
- 21.3. Delay shall not constitute breach and time is not of the essence.
- 21.4. No cancellation, penalties, liquidated damages or claims arise from such delays.
- 21.5. The Company may extend dates, suspend or terminate, with payment due for work done.
- 21.6. Customer payment obligations are not suspended.

22. **GOVERNING LAW AND DISPUTE RESOLUTION**

- 22.1. Governed by the laws of the Republic of South Africa.
- 22.2. Jurisdiction: **Gauteng Local Division, Johannesburg.**
- 22.3. Disputes, proceed to negotiation, AFSA mediation, then AFSA arbitration.

23. **CHANGES TO THESE TERMS & CONDITIONS**

- 23.1. The Company may modify these Terms and Conditions at any time, for example (but not limited to), in order to reflect changes to the law or changes to our products and the way in which they are sold and distributed. The onus is on the Customer to regularly check or request for updates to these Terms and Conditions.

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ANNEXURE

PUMP MANUFACTURING, REPAIR & SERVICE CONDITIONS

This Annexure forms an integral part of the Contract and prevails over the main Terms & Conditions to the extent of any conflict, but only in respect of pump-related Goods and Services

A1. SCOPE

This Annexure A applies to the manufacture, supply, modification, refurbishment, repair, testing, servicing, commissioning and overhaul of all pumps, pump systems and pump components supplied or worked on by the Company.

A2. DUTY CONDITIONS & CUSTOMER RESPONSIBILITY

- A2.1. The Customer warrants the accuracy and completeness of all duty conditions, operating data, system information, fluid characteristics and site conditions provided to the Company.
- A2.2. Pump selection, sizing and application remain the Customer's sole responsibility, unless the Company expressly agrees in writing to assume such responsibility.
- A2.3. The Company shall not be liable for incorrect pump selection, underperformance, overloading or failure arising from inaccurate, incomplete or misleading information supplied by the Customer.

A3. WEAR, ABRASION & OPERATING CONDITIONS

- A3.1. No warranty is provided for wear or failure resulting from:
 - Abrasion;
 - Corrosion;
 - Cavitation;
 - Dry running;
 - Excessive cycling;
 - Operation outside specified duty ranges; or
 - Unsuitable fluid characteristics.
- A3.2. Pumps used in severe or high-wear applications may have reduced warranty periods at the Company's discretion.

A4. MANUFACTURE TO PATTERN / DRAWING

- A4.1. Where pumps or components are manufactured to Customer Drawings, samples or patterns, manufacture shall be to pattern only.
- A4.2. No responsibility is accepted for hydraulic efficiency, OEM tolerances, interchangeability or performance unless expressly agreed in writing.

A5. TESTING

- A5.1. Testing conducted by the Company does not replicate site conditions.
- A5.2. Performance deviations caused by installation, system configuration, suction conditions, discharge conditions, fluid properties or site factors are excluded from liability.
- A5.3. Testing is conducted at the Customer's risk, and does not imply acceptance of site performance.

A6. INSTALLATION & SYSTEM INTEGRATION

- A6.1. The Company is not responsible for installation, alignment, foundations, grouting, electrical supply, controls, pipework, valves or system design unless expressly agreed in writing.
- A6.2. Failures arising from incorrect installation, misalignment, poor foundations, electrical faults or pipework stress are excluded from warranty and liability.

A7. REPAIRS, STRIP-AND-QUOTE & PARTS

- A7.1. Strip-and-quote fees apply irrespective of whether the repair is approved.
- A7.2. The Customer authorises disassembly and handling necessary for inspection and quotation.
- A7.3. Removed or replaced parts will not be returned unless specifically requested in writing prior to commencement of work.

A8. UNCLAIMED EQUIPMENT

- A8.1. Pumps or components not collected within 90 (ninety) days of notification of completion or quotation may, at the Company's discretion, be scrapped or disposed of without liability.
- A8.2. Storage charges may accrue during this period.

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A9. PUMP-SPECIFIC WARRANTY

- A9.1. The Company warrants pumps only against defects in material and workmanship.
- A9.2. Warranty period:
- 6 Months from date of delivery or commissioning (whichever comes first).
- A9.3. The warranty will not apply if:
- The Customer installs any substitute parts not manufactured or supplied by the Company; or
 - If any alteration or modifications of any Goods are done without prior written consent of the Company.
- A9.4. The warranty excludes:
- Wear parts;
 - Seals and consumables (including if parts, fasteners or the like are found to be missing);
 - Reinstallation and removal costs;
 - Misuse, misapplication or incorrect operation;
 - Cavitation, dry running or abrasive service;
 - Corrosion or chemical attack;
 - Unauthorised dismantling or modification.

A10. CARE, CUSTODY & CONTROL – EXPRESS EXCLUSION

- A10.1. The Customer acknowledges and agrees that the Company does not assume and shall not be deemed to assume Care, Custody and Control of any pumps, components or Customer-Owned Goods at any time.
- A10.2. This exclusion applies while pumps or components are:
- On the Company's premises;
 - On a subcontractor's premises;
 - In transit;
 - Under inspection, repair, refurbishment or testing; or
 - In temporary storage.
- A10.3. All pumps and components remain at the sole risk of the Customer, who shall insure them for full replacement value.
- A10.4. The Company shall not be liable for loss of or damage to pumps or components howsoever arising, including theft, fire, hijacking, vandalism, corrosion, weather exposure or accidental damage.

A11. PUMP LIABILITY LIMITATION

- A11.1. The Company shall not be liable for:
- Loss of production;
 - Environmental damage;
 - Downstream system damage;
 - Business interruption;
 - Consequential losses or damages; or
 - Downtime; or
 - Third party monitoring, services, inspections, reports and/or related costs incurred therein.

A12. INDEMNITY

- A12.1. The Customer indemnifies the Company against all claims, losses or damages (including consequential), penalties and costs arising from:
- Misuse or misapplication of pumps;
 - Incorrect integration into systems;
 - Export or regulatory non-compliance;
 - End-User conduct or site conditions.

A13. SAFETY & COMPLIANCE

- A13.1. All site-specific safety, guarding, operational procedures, statutory compliance and system-level compliance remain the Customer's sole responsibility.

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